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Title Number TGL239081

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DATED 1 October 2011

THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND

LTA NOMINEES LIMITED

LTA CLG LIMITED

and

THE ALL ENGLAND LAWN TENNIS GROUND PLC

DEED OF RELEASE, SUBSTITUTION AND VARIATION

PREMISES:	The National Tennis Centre, 100 Priory Lane, Roehampton, London SW15 5JQ
LEASE:	lease of the Premises dated 2 June 2004 and made between The Governor and Company of The Bank of England (1), LTA Nominees Limited (2) and The All England Lawn Tennis Ground plc (3)

SEQ201

COPY

SLAUGHTER AND MAY
ONE BUNHILL ROW
LONDON EC1Y 8YY
TEL NO: 020 7600 1200
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REF: SLE/TJZH
505835649

Certified to be a true copy
SLAUGHTER AND MAY
Slaughter and May
03.10.2011
ONE BUNHILL ROW EC1Y 8YY

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PARTICULARS

Date of deed	:	1 October **2011**
Parties to this deed	:	**Landlord** **THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND** of Threadneedle Street, London EC2R 8AH
		Tenant **LTA NOMINEES LIMITED** (registered in England number 02445690) whose registered office is at 100 Priory Lane, Roehampton, London SW15 5JQ
		Incoming Guarantor **LTA CLG LIMITED** (registered in England number 7459469) whose registered office is at 100 Priory Lane, Roehampton, London SW15 5JQ
		Outgoing Guarantor **THE ALL ENGLAND LAWN TENNIS GROUND PLC** (registered in England number 00168491) whose registered office is at Hill House, 1 Little New Street, London EC4A 3TR
Property	:	The land and buildings known as the National Tennis Centre, 100 Priory Lane, Roehampton, London SW15 5JQ as registered at the Land Registry under title number TGL239081
Lease	:	The lease of the Property dated 2 June 2004 and made between The Governor and Company of The Bank of England (1) LTA Nominees Limited (2) and The All England Lawn Tennis Ground plc (3) for a term of 125 years from 2 June 2004 to 1 June 2129 as varied by this deed of release, substitution and variation made between The Governor and Company of the Bank of England (1) LTA Nominees Limited (2) The All England Lawn Tennis Ground Plc (3) and LTA CLG Limited (4)

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THIS DEED is made on the date specified in the Particulars between the Landlord, the Tenant, the Incoming Guarantor and the Outgoing Guarantor.

THIS DEED WITNESSES as follows:

1. GENERAL

1.1 In this deed, except where the context otherwise requires, the following words and expressions have the following meanings:

"Agreement for Lease" means the agreement dated 3 July 2003 and made between the Landlord (1) LTA Ground Limited (2) and the Outgoing Guarantor (3) (as novated on 2 June 2004 from LTA Ground Limited to the Tenant);

"Incoming Guarantor" means the Incoming Guarantor specified in the Particulars;

"Landlord" means the Landlord specified in the Particulars and includes the person for the time being entitled to the reversion immediately expectant on the determination of the Term;

"Lease" means the Lease specified in the Particulars;

"Outgoing Guarantor" means the Outgoing Guarantor specified in the Particulars;

"Premises" means the Property specified in the Particulars and more particularly described in the Lease;

"Tenant" means the Tenant specified in the Particulars and includes its successors in title and assigns;

"Term" means the term of years created by the Lease; and

"Variations" means the variations of the Lease set out in the schedule to this deed.

1.2 This deed is supplemental to the Lease.

1.3 This deed incorporates the Particulars.

1.4 In this deed, unless otherwise specified:

(A) a reference to a clause is to a clause of this deed;

(B) headings to clauses are for convenience only and do not affect the interpretation of this deed;

(C) where a party consists of two or more persons the obligations of such persons are joint and several; and

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(D) nothing in this deed releases or lessens the liability of any person (other than the Outgoing Guarantor under clause 2.2) to the Landlord in respect of the covenants and conditions in the Lease or constitutes a waiver of any outstanding breach.

2. SUBSTITUTION AND RELEASE

2.1 The Incoming Guarantor undertakes with the Landlord to observe and perform the duties and obligations on the part of the Outgoing Guarantor contained in the Agreement for Lease and Lease and to be bound by the terms and conditions of clause 8 (Guarantee) of the Lease and clause 11 (Guarantee) of the Agreement for Lease as if the Incoming Guarantor had originally been named as a party to the Lease and Agreement for Lease in lieu of the Outgoing Guarantor.

2.2 The Landlord hereby releases and discharges the Outgoing Guarantor from all and any claims, demands, liabilities and obligations arising under or pursuant to, or in respect of, the Agreement for Lease and the Lease and accepts the liability of the Incoming Guarantor as set out in clause 2.1 in lieu of the liability of the Outgoing Guarantor. For the avoidance of doubt, the Incoming Guarantor shall be liable for all and any claims, demands, liabilities and obligations under clause 8 (Guarantee) of the Lease and clause 11 (Guarantee) of the Agreement for Lease whether past, present or future

3. VARIATION

3.1 The Landlord, the Tenant and the Incoming Guarantor agree that with effect from the date of this deed the Lease is varied by the Variations.

3.2 Save as varied by this deed, the Lease shall continue in full force and effect.

3.3 The Landlord and the Tenant covenant with each other to observe and perform their respective obligations in the Lease as varied by the Variations.

3.4 The Incoming Guarantor agrees with the Landlord that:

(A) the Incoming Guarantor is bound by the Variations; and

(B) the Incoming Guarantor's obligations in the Lease extend to the covenants of the Tenant in the Lease as varied by the Variations.

4. CHANGE OF CONTROL

The Incoming Guarantor covenants that it shall not, without the prior written consent of the Landlord (such consent not to be unreasonably withheld or delayed), permit or suffer any transaction which would result in any of the Tenant, LTA Property Limited (registered in England with company number 7475188) or LTA Operations Limited (registered in England with company number 7475460) (in each case while the relevant entity holds a legal estate in the Premises) no longer being a Subsidiary (within the meaning of Section 1159 of the Companies Act 2006) of the Incoming Guarantor.

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5. NOTICE TO LANDLORD

The Landlord hereby accepts notice from the Tenant that each of the Tennis Foundation (registered in England with company number 2138124) and the Surrey Lawn Tennis Association is an Associated Organisation currently sharing (or which may share) occupation of the Premises with the Tenant for the purposes of the Lease.

6. NO SURRENDER

The Lease and the Term shall continue in full force and effect and nothing contained in it shall cause this deed to take effect as a surrender and regrant.

7. INDEMNITY

7.1 Subject to clause 7.2, the Incoming Guarantor covenants with the Landlord to indemnify the Landlord against all expenses proceedings cost claims damages demands and any other liability or consequence arising out of or incidental to this deed.

7.2 The Incoming Guarantor shall have no greater liability whether in quantum or in scope to the Landlord than it would have had if the Incoming Guarantor had been named as original guarantor under each of the Lease and the Agreement for Lease.

8. MEMORANDUM

Forthwith after the date of this deed, the Landlord and the Tenant shall endorse the counterpart and the original of the Lease respectively with a memorandum to the effect that the Lease has been varied by this deed.

9. LAND REGISTRY

Promptly after the date of this deed, the Tenant shall at its own expense make and diligently pursue an application to the Land Registry to have a note of this deed made on the Tenant's registered title to the Lease and provide evidence of the same to the Landlord's solicitors.

10. CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 1999

The parties do not intend that any provision of this deed is to be enforceable by virtue of the Contracts (Rights of Third Parties) Act 1999 by a person who is not a party to it or a successor of such a party.

11. COUNTERPARTS

This deed may be executed in any number of counterparts and by the parties to it on separate counterparts each of which is an original but all of which together constitute one and the same instrument.

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12. GOVERNING LAW AND JURISDICTION

12.1 This deed shall be governed by and interpreted in accordance with English law.

12.2 The parties give the courts of England exclusive jurisdiction to settle any dispute (including claims for set-off and counterclaims) which may arise in connection with the validity effect interpretation or performance of or the legal relationships established by this deed or otherwise arising in connection with this deed.

IN WITNESS of which the Landlord, the Tenant, the Incoming Guarantor and the Outgoing Guarantor have executed this document as a deed on the date specified in the Particulars.

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THE SCHEDULE

The Variations

(A) In clause 1 (Definitions) of the Lease, the words "Lawn Tennis Association" are deleted from the definition of "Associated Organisations" and substituted by the following words: "Tenant and any company within the same group of companies (within the meaning of section 42 of the Landlord and Tenant Act 1954) as the Tenant".

(B) In clause 1 (Definitions) of the Lease, the words "Lawn Tennis Association" are deleted from the definition of "Permitted Use" and substituted by the following words: "Tenant and any company within the same group of companies (within the meaning of section 42 of the Landlord and Tenant Act 1954) as the Tenant".

(C) In clause 2.3 (Interpretation) of the Lease, the existing words are deleted and substituted by the following words

"2.3 A covenant by the Tenant in this Lease or any licence or other document that is collateral to this Lease not to do (or omit) any act or thing also operates as a covenant not to permit or suffer it to be done (or omitted) and a covenant to do something operates as a covenant to procure that it is done."

(D) In clause 5.3.1 of the Lease (Outgoings), the following words shall be added after "Premises":

"(including costs of any allowances and other costs in each case directly incurred in respect of the Premises in association with any carbon reduction commitment energy efficiency scheme and/or any successor scheme)".

(E) In clause 5.13.6 (Alienation) of the Lease, the existing words are deleted and substituted by the following words:

"5.13.6 Not to underlet or agree to any underletting or sub-underletting, or to agree to the assignment of any underletting or sub-underletting, of the whole or any part or parts of the Premises except with the prior written consent of the Landlord (subject to the proviso set out below, such consent not to be unreasonably withheld or delayed), nor in each case other than on terms which shall first have been approved by the Landlord, (subject to the proviso set out below, such approval not to be unreasonably withheld or delayed)

PROVIDED THAT:

(A) the Landlord may withhold its consent where the terms of any underlease or sub-underlease of the Premises are inconsistent with the terms of this Lease,

(B) the Landlord shall not unreasonably withhold or delay its consent where the Tenant or undertenant (as the case may be) is applying to the Landlord for consent to renew or replace an existing underlease or sub-

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underlease of the Premises which has been approved by the Landlord on a previous occasion and where the terms are the same in all material respects as those of the existing underlease or sub-underlease and the proposed undertenant or sub-undertenant is the same as that of the existing underlease or sub-underlease (or a company within the same group of companies (within the meaning of section 42 of the Landlord and Tenant Act 1954) as the Tenant)."

(F) Insert the following words as new clause 5.13.10 (Alienation):

"5.13.10 Not at any time expressly or by implication to waive any breach of any tenant covenant or obligation contained in any underlease or subunderlease which also constitutes a breach of the tenant's covenants under this Lease, nor vary the terms of any permitted underlease or subunderlease, nor accept a surrender of nor forfeit any underlease or subunderlease, in each case without the prior written consent of the Landlord (so long as it is not inconsistent with the terms of this Lease, such consent not to be unreasonably withheld or delayed)."

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Executed as a deed by affixing the common seal of
THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND
in the presence of:

Executed as a deed by
LTA NOMINEES LIMITED
acting by a director and its secretary or by two directors:

Director

Director/Secretary

Executed as a deed by
LTA CLG LIMITED
acting by a director and its secretary or by two directors:

Director

Director/Secretary

Executed as a deed by
THE ALL ENGLAND LAWN TENNIS GROUND PLC
acting by a director and its secretary or by two directors:

Director

Director/Secretary

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